BY ORDER OF THE COMMANDER
59TH MEDICAL WING

59TH MEDICAL WING INSTRUCTION 44-160

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STAFF RIGHTS: EXCLUSION FROM CERTAIN ASPECTS OF PATIENT TREATMENT/CARE

COMPLIANCE WITH THIS PUBLICATION IS MANDATORY

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(Colonel John Andrus)

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Excluded 959th Medical Group personnel and updated policy and procedures. A margin bar (|) indicates newly revised material.

SUMMARY OF CHANGES

Updated references and formatting.

1. Policy and Procedures. It is understood that situations may arise in which the prescribed course of treatment or care for a patient may be in conflict with the religious beliefs or personal values of a staff member.

1.1. It is the responsibility of the staff member to immediately notify his/her supervisor of his/her concerns and to request that he/she be excused from participating in that particular aspect of treatment or care of the patient.

1.1.1. The 59th Medical Wing Code Of Ethics has been adopted to ensure that all facets of the organization's mission are performed according to the highest standards of personal and professional conduct. Adherence to these standards is neither optional nor selective. The staff of the 59 MDW shall not trade or compromise for financial, professional, or other gain, any of the standards described in the Code Of Ethics. Every individual's actions should be judged by considering whether the action is honest, decent, legal, and proper, and whether it could withstand scrutiny. It is the responsibility of every member

of the 59th Medical Wing to act in a manner that is consistent with the organization's values and this ethics code.

1.2. The supervisor will make a decision on the request. As permitted by the situation, this request must be communicated in writing by the staff member to the supervisor as soon as reasonably possible, but not longer than 24 hours after the initial notification. The request must include the specific aspect(s) of treatment/care from which the employee is requesting to be excused and the reasons for making the request.

1.3. The staff member will deliver the written request to the first line supervisor who will keep a copy of the request and forward the original to the respective department chief.

1.4. When a staff rights issue has been decided, the first line supervisor should deliver a written response to the staff member explaining the decision.

1.5. If a satisfactory solution to a staff rights issue cannot be resolved at the level of the immediate supervisor, the issue should be raised to the next level supervisor (Medical Directors, Nursing supervisors, Chief Nurse, or Chief of Staff at the group or wing level), or to the Chief, Department of Ministry and Pastoral Care, if the issue involves a conflict with religious beliefs. When conflicts cannot be resolved within the organizational chain of command, members of the 59 MDW may seek guidance from the 59 MDW Human Relations/Equal Opportunity Office under AFI 36-2706, Military Equal Opportunity Program.

1.6. DELETED.

1.7. If there is any question about the validity of a staff member's rights issue, before it is denied it is strongly recommended that the case be reviewed by the Medical Law Consultant's Office.

1.8. DELETED.

1.9. The 59 MDW will attempt to make accommodations for all reasonable staff member requests for exclusion from patient treatment or care resulting from a conflict with the staff member's religious beliefs or personal values. This may include honoring a staff member's request for transfer to another department or service in which such conflicts are less likely to occur.

1.10. Aspects of treatment or care which may fall into this category include (but are not limited to):

1.10.1. Withholding life sustaining treatment.

1.10.2. DELETED.

1.10.3. Do not resuscitate orders.

1.10.4. Termination of pregnancy.

1.10.5. Selective reduction of multiple gestation pregnancies.

1.10.6. Sterilization procedures.

1.10.7. Writing prescriptions for certain drugs or filling these prescriptions.

1.10.8. Blood transfusions in patients with certain religious beliefs.

1.10.9. DELETED.

1.10.10. Following a plan of treatment/care when the employee believes the best interests of the patient are at risk.

1.11. The 59 MDW's goal is to honor the religious, moral, and ethical views of its staff who request to be excluded from certain aspects of patient treatment/care for religious, moral or ethical reasons. The 59 MDW will attempt to accommodate all reasonable requests.

2. DELETED.

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Chief of the Medical Staff

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

AFPD 44-1, Medical Operations, 1 September 1999

AFI 36-2706, Military Equal Opportunity Program, 29 July 2004

59MDWI 41-123, Patient Rights, 2 June 2009

59MDWI 44-129, Ethics Consult Service, 10 March 2010

59MDWI 44-133, Plan for the Provision of Patient Care, 24 August 2006

The Joint Commission Comprehensive Accreditation Manual for Hospital, January 2008

Adopted Form

AF Form 847, *Recommendation for Change of Publication*

Abbreviations and Acronyms

EF—Ethics Function

IAW—In Accordance With

MDW—Medical Wing

MDWI—Medical Wing Instruction

OPR—Office of Primary Responsibility